

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD.,

RESPONDENT.

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE. LTD., AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED

THIRD PARTY RESPONDENTS,

**COMPLAINANT SEA'S OPPOSITION TO RESPONDENT COSCO'S MOTION TO
SUPPLEMENT THE RECORD RELATED TO COMPLAINANT'S MOTION TO
COMPEL**

Samsung Electronics America, Inc. (“SEA”) submits this opposition to COSCO Shipping Lines Co., Ltd.’s (“COSCO”) Motion to Supplement the Record Related to SEA’s Motion to Compel (the “Motion” or “COSCO Supp. Response”).

INTRODUCTION

COSCO is not being forthright when it uses the device in its last two motions that “it understands” something it hopes the Presiding Officer really meant at a hearing or in its order, when it is instead a self-serving interpretation used to submit documents into the record as COSCO sees fit. Orders and directions are not suggestions.

COSCO first used this “it understands” device when it wrote in its Emergency Motion for Enlargement of Time to File Response to Complainant’s Motion to Compel that, “[o]n February 13, 2026, the Presiding Officer held the scheduled hearing. In connection with the discussion of SEA’s Motion to Compel, **counsel for COSCO understood** the Presiding Officer to request that COSCO submit an affidavit or declaration from a qualified Chinese attorney addressing the issues under Chinese law that affect the production of documents from China. COSCO intends to do so in response to SEA’s Motion to Compel.” *See* Dkt.98 at 2 (emphasis added). SEA found this “understanding” curious because it did not recall any instruction at the February 13, 2026, discovery hearing. The Presiding Officer then disabused COSCO of its “understanding.”

In the February 18, 2026 Order denying the emergency motion (“February 18 Order”), the Presiding Officer addressed this “understanding” and made plain, “[t]o prevent any further misunderstanding, no affidavit or declaration was requested by me, and none is necessary.” *See* Dkt. 100 at 2. The Presiding Officer then provided COSCO instructions as to important matters of U.S. discovery law it should be aware of to underscore “that production of the documents was urgent.” *Id.* at 3. Indeed, the Presiding Officer further advised, in an effort to stress the importance

of the discovery issues, that, “[i]t is concerning that this issue is being raised well after document production was to be completed under the existing scheduling order.” *Id.* COSCO ignores this concern, and the warning the Presiding Officer raised concerning any Chinese law affidavit:

A declaration from COSCO’s Chinese counsel could have been obtained if deemed necessary by COSCO’s US counsel after the meet and confer on February 5, 2026, but would have been more appropriate at least a week before the October 17, 2025, deadline in the current scheduling order, which is when the parties should have requested the extension. While I acknowledge the importance of the New Year holiday in China, extending COSCO’s time to respond to SEA’s MTC will delay this proceeding further. Rather than focusing on providing an affidavit regarding the limitations of Chinese law, COSCO should discuss US case law where discovery has been delayed or impeded because of the “possibility” of violating the laws of a foreign jurisdiction where the records may be domiciled and how that is distinguishable, if at all, from this proceeding. See, *MSC Mediterranean v. FMC*, supra; 46 C.F.R. § 502.150(d).

Id. at 3 (emphasis added). COSCO’s Motion ignores the Presiding Officer’s statement that COSCO had an opportunity to submit a Chinese law affidavit, if it was truly vital to do so, and failed to. The Presiding Officer also observed that such an affidavit was “not necessary” and COSCO should be focusing its efforts elsewhere on the production of documents located in China. Because at bottom, the FMC relies on U.S. discovery rules to conduct its proceedings, and a foreign ocean carrier must respect these rules when it receives the benefit of reaping substantial revenues from access to U.S. ports and infrastructure to deliver goods to the American consumer and public.

COSCO’s Motion is not only substantively improper, but also an affront to two orders issued by the Presiding Officer. First, the aforementioned February 18 Order denying COSCO’s emergency motion to allow it to file a Chinese law affidavit after the FMC rules briefing deadline. This request was denied and COSCO’s understanding of what was sought was directly corrected. Then, the Presiding Officer’s February 26, 2026, Order on Fifth Extension and Modification of Discovery Schedule (“February 26 Order”). See Dkt. 104. The last direction in the February 26

Order advised the parties that future discovery motions could only be filed when following a specific protocol, stating:

Moreover, in the interest of minimizing further delay, no further discovery motions should be filed in this matter until the outstanding motions are decided. In the event of an urgent need to file a motion prior to the issuance of orders deciding the outstanding motions, the parties are instructed to first send an email to me at Judges@FMC.gov, copying the other parties, stating what issues they are unable to resolve in a cooperative manner, and requesting a status conference.

See Feb. 26 Order at 3. There is no room for ambiguity in this order; no discovery motions filed without a status conference request. Yet, COSCO's Motion acknowledges the February 26 Order and attempts to circumvent it by again using its "it understands" device to state, "**COSCO understands that direction**, the instant motion is not a discovery motion because it adds no discovery issues and is designed to assist the Presiding Officer in making a decision on the existing discovery motions." Motion at 1-2 fn. 1 (emphasis added). COSCO is not being forthright with the Presiding Officer; the Presiding Officer did not ask for an "assist" in the form of a Chinese law affidavit, which it made plain in the February 18 Order. The affidavit was not "necessary" and COSCO was far too late asserting the issue. There is only one credible explanation SEA can discern from COSCO's conduct in filing a motion addressing its Chinese law discovery points when the Presiding Officer explicitly stated that "no further discovery motions" are to be filed without permission. COSCO did not want to seek permission and risk having its request rejected before it could get the Chinese law affidavit within the record, in an attempt to influence the ultimate adjudication of SEA's motion to compel.

COSCO's blatant circumvention of the Presiding Officer's two orders should not be countenanced. COSCO's Chinese law affidavit (supplied in full as an exhibit to the Motion), should be stricken from the record as a submission neither requested, sought, or permitted after the February 18 Order rejected any notion any affidavit was needed. COSCO's opposition to

SEA's motion to compel critical documents in China, relying on Chinese law concepts to usurp FMC discovery rules, must survive or fail on COSCO's incorrect interpretation of U.S. discovery rulings—not on the Chinese law affidavit.

In addition to running afoul of the February 18 and 26 Orders, COSCO's Motion suffers from additional substantive failings. The Motion does not raise any new factual or legal arguments that warrant supplementing the record. It is nothing more than a transparent attempt to pressure SEA into accepting COSCO's "Proposed Resolution" before the Presiding Officer issues an adverse order against COSCO which would then trigger some further issues for it in China.

Moreover, the Proposed Resolution does not moot SEA's motion to compel as COSCO contends. It only further emphasizes COSCO's flagrant and ongoing failure to comply with its discovery obligations, as well as its longstanding pattern of invoking immaterial Chinese law concerns to avoid these obligations—which should have been satisfied in August 2025 (the original document production order deadline). Specifically, COSCO's proposed "solution" to resolve SEA's foreign-based document discovery concerns by offering to "produce unredacted names and email addresses of COSCO employees for documents located in China" does not moot SEA's motion to compel. COSCO does not provide a date certain for completion of any such production. Neither does the proposal satisfy COSCO's obligation to produce the corresponding metadata necessary to identify document families and attachments, as COSCO could not confirm whether (or when) such metadata would be produced because of Chinese law concerns.

COSCO's Proposed Resolution also improperly conditions its production of unredacted documents on the absence of any court order requiring COSCO to produce the same. COSCO threatens that in the event of an order of production, document production would be delayed by an unspecified length pursuant to Chinese law. However, given there is no order compelling

production currently in place, the Motion only serves to highlight that COSCO could have (and should have) *voluntarily* produced the responsive documents in unredacted form at the outset of discovery. The Chinese law concerns cited by COSCO in the Chinese law affidavit (addressed here if the Presiding Officer does not strike the wrongfully-filed document), does not alter this analysis, as nothing therein states that COSCO has been unable to comply with its obligation to produce the at-issue documents. These Chinese law concerns are not novel and should have been known to COSCO since the outset of discovery.

The Motion should be denied, the affidavit stricken from the record, and SEA's motion to compel be decided on the current record.

ARGUMENT

I. COSCO's Motion Fails To Present A Basis To Warrant Supplementation

The Motion does not present a factual or legal basis to supplement the record while failing to engage with governing U.S. law and the Presiding Officer's clear instructions. These grounds alone justify denial of the Motion.

COSCO is a controlled ocean common carrier registered with the Federal Maritime Commission ("Commission") that conducts business in the United States and is therefore subject to the Commission's jurisdiction. Yet, COSCO persists in framing its objections almost exclusively through the lens of Chinese law, while failing to engage with governing U.S. discovery standards and the Commission's clearly articulated framework. As a result, neither the Motion nor COSCO's initial opposition satisfies the particularized showing required under *MCS Industries, Inc. v. Mediterranean Shipping Company S.A.*: that Chinese law actually bars the discovery at issue, including the required showings that the materials are exclusively located abroad, identified

with particularity, and subject to a concrete prohibition.¹ FMC Dkt. No. 21-05, 2024 WL 95383, at *2, *5, *12–13. Generalized objections that fall short of that standard may constitute undue delay and warrant sanctions. 46 U.S.C. § 41302(d); FMC Dkt. No. 21-05, 2024 WL 692719, at *8.

Consistent with this deficiency, COSCO’s Motion—and its earlier opposition to SEA’s motion to compel—assert in conclusory fashion that compliance with SEA’s discovery requests could expose COSCO to criminal sanctions under Chinese law. Dkt. 102 at p. 8; *see* Declaration of Jihong Chen (Exhibit 1 to the COSCO Motion) (“Chen Decl.”), Dkt. 107 at 4. That assertion is unsupported. The examples cited in Exhibit C to the COSCO Motion are readily distinguishable, as each involves the collection, acquisition, or use of personal information for commercial gain or marketing purposes. Exhibit C to the Chen Decl., Dkt. 107 at 245-47. None concerns the production of information in response to compulsory discovery during litigation. COSCO offers no authority demonstrating that compliance with discovery obligations in this proceeding would give rise to criminal liability, and its generalized references to sanctions therefore do not justify the sweeping restrictions it now seeks to impose.²

¹ COSCO’s Motion also does not acknowledge or indicate that COSCO followed the Presiding Officer’s Instructions that COSCO’s U.S. counsel inform its Chinese counsel that production of the documents was urgent, that redacting corporate email addresses and names of those making decisions who SEA may want to depose is not considered personally identifiable information under U.S. law and cannot be redacted, and that Chinese counsel should be provided with the United States District of Columbia Court of Appeals opinion in *MSC Mediterranean Shipping Company S.A. v. Federal Maritime Commission and United States of America and MCS Industries, Inc.*, 141 F.4th 222 (D.C. Cir. 2025). February 18 Order at 2-3.

² Foreign blocking statutes do not in and of themselves excuse parties from their discovery obligations. *See Philips Medical Systems (Cleveland), Inc. v. Buan*, No. 19 CV 2648, 2022 WL 602485, at *2 (N.D. Ill. Mar. 1, 2022) (examining Chinese blocking statutes, stating “[a]s the Supreme Court has explained, ‘[i]t is well settled that [foreign blocking] statutes do not deprive an American court of the power to order a party subject to its jurisdiction to produce evidence even though the act of production may violate that statute’”) (citing *Societe Nationale Industrielle Aerospatiale v. U.S. Dist. Ct. for S. Dist. Of Iowa*, 482 U.S. 522, 544 n. 29 (1987)). “Even ‘[t]he fact that foreign law may subject a person to criminal sanctions in the foreign country if he produces certain information does not automatically bar a domestic court from compelling

Thus, COSCO's Motion provides no new factual or legal basis to excuse its non-compliance or delay.

II. COSCO's Proposed Resolution Fails To Moot SEA's Motion To Compel

COSCO's proposal only further highlights its failure to abide by its discovery obligations to date. While COSCO is well aware of its U.S. discovery obligations, its proposal nevertheless constitutes an improper contingent offer of future production rather than a firm commitment to immediately produce documents in usable form (complete with metadata) by a specific date. Instead of focusing squarely on their efforts to produce the at-issue responsive documents purportedly located in China by a date certain as required, COSCO yet again improperly attempts to shift focus to issues of Chinese law and unnecessarily shoehorn them into these proceedings. COSCO's arguments do nothing to moot SEA's pending motion to compel.

The Chinese law cited by COSCO, both in its opposition to SEA's motion to compel and in the Chen Decl., is not novel. COSCO's counsel previously addressed the application of Chinese law, including China's Personal Information Protection Law, in opposing SEA's motion to compel. *See* Dkt. 102 at 1, 5–6, 8–9. The cited aspects of Chinese law and their import vis-à-vis the Proposed Resolution were indeed available when the parties submitted briefing on SEA's Motion to Compel and has, in fact, been available since the beginning of discovery. COSCO was simply either not aware of or chose not to inform the Presiding Officer of these potential restrictions. Regardless, these issues should have been raised at the outset of discovery, not five weeks from the latest deadline afforded to COSCO to meet its document discovery obligations. To

production.” *Id.* (citing *United States v. First Nat'l Bank of Chi.*, 699 F.2d 341, 345 (7th Cir. 1983)). *See also In re Valsartan, Losartan, & Irbesartan Products Liab. Litig.*, MDL No. 2875 (RBK), 2021 WL 6010575, at *18 (D.N.J. Dec. 20, 2021) (ordering production of documents subject to Chinese blocking statutes, and noting “PRC defendants cannot enter the U.S. market expecting a possible shield from unfavorable discovery by PRC blocking statutes” noting “if [PRC defendants] don't like the rules, then stop doing business in the U.S.”).

the extent the Chen Decl. purports to provide additional detail or nuance beyond what COSCO previously argued, that information likewise was available at the time of briefing on SEA's Motion to Compel and did not require a last-minute declaration.

COSCO's Motion is another example of its pattern of discovery delay designed to conceal key Chinese-based decision makers since the outset of this dispute. SEA was entitled to this information seven months ago and is entitled to this information now. It is grossly improper for COSCO to now threaten to prolong the document review and production process in the absence of SEA's agreement to the Proposed Resolution. These bad faith discovery tactics are precisely the type of conduct that SEA seeks to prevent via the relief requested from the Presiding Officer.

CONCLUSION

SEA respectfully requests the Presiding Officer deny the Motion and strike the Chen Declaration from the record so that it can proceed with SEA's motion to compel determination in due course, and such other remedies and relief that are just and proper.

Dated: March 11, 2026

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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